

APPOINTMENT LETTER

Ref No. 28734

Dated: 1-Nov-2021

Name	Mayank Chaudhary
Date of Birth	8-Nov-1996
Address – Permanent	Village And Post Nasirpur Banwari Dhampur Bijnor
Address – Present	Village And Post Nasirpur Banwari Dhampur Bijnor
Email ID – Personal	mayankrvit501@gmail.com
Mobile Number	8279535121
Alternative Number	9927128915
Joining Date	1-Nov-2021
Designation	Quality Analyst
Business Unit	Direct GS
Department	Refurb
Location	Delhi

DEAR MAYANK CHAUDHARY,

CONGRATULATIONS & WELCOME TO THE CARS24 TEAM!

*Cars24 Services Private Limited (**Company**) has enormous growth plans and is rapidly scaling up with each valuable resource added to its talent repertoire. This is your chance of unparalleled exposure and growth opportunity!*

Your appointment shall be subject to the following terms:

1. Appointment

Your appointment shall be effective from 1-Nov-2021. Your appointment as Quality Analyst will be on a full-time basis and shall be governed by the terms contained herein and the Policies of the Company as applicable from time to time. You confirm that you have been provided with copies of and have familiarised yourself with the Policies of the Company.

2. **Compensation**

You shall be entitled to a compensation for an amount of **INR 450000 (Rupees Four Lakh Fifty Thousand Only)** being the total Cost to Company (CTC). The payment of the CTC shall be as detailed out and mentioned in **Annexure –A** attached with this Appointment Letter.

This remuneration shall be paid to you in accordance with the Company's normal payroll practices. The salary shall be paid in monthly arrears and the Company may at its discretion grant to you increase in salary as it may from time to time determine based on your performance.

The salary shall be paid into a nominated bank account to be informed by you to the Company and subject to all deductions required to be made under law, including under the Income Tax Act, 1961. Such deductions may also include contributions towards any company sponsored welfare plan, loan or insurance plan. You understand and acknowledge that you shall be solely liable for any statutory liabilities pertaining to the compensation structure arising out of and for any deductions for the purpose of statutory taxes as would be applicable upon you.

[The basis of calculation of bonus as well as your salary shall be reviewed by the Company in the month of [April] of each year. Any such review shall not necessarily mean an upward or downward revision in the remuneration. Your rights to receive any form of compensation payable pursuant to this Agreement may not be assigned or transferred except by operation of law. Any other attempted assignment, transfer, conveyance or other disposition you of your rights to compensation or other benefits shall be null and void.]

The Company shall provide all applicable statutory benefits and may provide additional benefits in accordance with its policies.

[You are eligible to participate in Company-sponsored benefits and be a member of any employee benefit plans or discretionary incentive plans that the Company may establish and are generally available to other employees of the Company, including medical insurance coverage, life insurance and employee stock option/purchase plan ('ESOP Scheme').]

3. **Probation**

You understand that your services shall be on **probation period for 3 months**. Employment confirmation will be subject to approval from your reporting manager. During the probation period the Company shall possess the rights to extend your probation period. In case you and/or the Company prefers to terminate this Appointment Letter then the same shall be subject to a prior notice period of 7 (seven) days and/or requisite salary in lieu thereof.

4. **Duties and Responsibilities**

You acknowledge that your reporting matrix, designation and place of operations is subject to change as per the business requirements and interests of the Company. The change may include relocation to other locations in India. Any such decision shall be at the sole discretion of the Company.

You understand and acknowledge that the Company expects trust and dedication to be maintained by you during the performance of the assignments as assigned to and ancillary to your profile. Your appointment with us restricts you to engage yourself and/or devote time to and

for any other organization, trade, business or profession and/or any other kind of employment during the subsistence of your tenure with the Company.

The Company constitutes of an enthusiastic work force and of a team aligned with a common goal to achieve exceptional performance in their respective profiles and accordingly the Company provides them an opportunity to operate 9 (nine) hours a day and 6 (six) days a week. Being a part of this team, you shall be expected to cooperate and work hand in hand with the team. If necessary, you agree to work such additional hours as may be necessary for you to perform the duties effectively and otherwise in accordance with the Company's policies in that behalf and you will not be entitled to receive any additional remuneration for work done outside the normal hours of work other than statutory entitlement.

5. **Confidential Information**

You understand that during the course of your tenure that you will have access to Confidential Information of the Company. You shall be obligated to use the Confidential Information only for the purpose of performing your duties. You shall at times, during the term of your employment and at all times, thereafter, keep confidential and secure the Confidential Information.

The term "Confidential Information" as used in this Appointment Letter means any data, information, or knowledge about the Company or its customers, prospective customers, and/or suppliers that you have access to and is not generally known or available to the public and which is or should reasonably be understood to be confidential or proprietary information and will include but not be limited to:

- a. the terms of this Appointment Letter;
- b. the Company's business or operational plans or activities, existing or contemplated markets, advertising initiatives, methods of operation, products, or services;
- c. the Company's financial projections, including but not limited to, annual sales forecasts and targets and any computation(s) of the market share of customers and/or customer prospects;
- d. the Company's dealers, channel partners, suppliers, sellers, customers, prospective customers, or logistics data;
- e. the Company's customer, dealer, channel partner or supplier lists, cost of goods or services, profits and losses, budgeting, past or future sales, or financial information;
- f. the account terms and pricing upon which the Company obtains products and services from its suppliers;
- g. the terms and pricing of services rendered by the Company to its customers;
- h. the Company's existing or contemplated designs, technical systems, models or platforms, formulas, research, notes, or analytical data;
- i. the Company's employees, salaries, job related functions, duties or responsibilities; and
- j. the Company's Intellectual Property.

You accept and acknowledge that all application data, documents, written presentations, brochures, drawings, memoranda, notes, records, files, correspondence, manuals, models, specifications, computer programs, e-mail, electronic databases, maps, drawings, architectural renditions, models and all other writings or materials of any type including or embodying any Confidential Information shall be deemed Confidential Information and be subject to the same restrictions on disclosure applicable to Confidential Information pursuant to this Appointment Letter.

Further, with respect to the Confidential Information:

- a. You agree to not permit unauthorized access to or unauthorized use, disclosure, publication, or dissemination of Confidential Information.
- b. You accept and acknowledge that the Confidential Information is and will remain the sole and exclusive property of the Company and that you will not disclose or reveal any such information, except (i) to other employees of the Company who have a need to know such information or (ii) with the Company's express prior written consent.
- c. Upon termination of your employment or at the request of the Company, you will ensure that all Confidential Information and all documents, memoranda, notes and other writings or electronic records prepared by you that include or reflect any Confidential Information that is in your actual or constructive possession is returned to the Company immediately or destroyed by you.
- d. You accept that this obligation to not disclose Confidential Information will remain in effect and survive the termination of this Appointment Letter.

6. **Business Opportunities**

You undertake to direct all commercial opportunities related to the Company's business to the Company.

7. **Competition**

You accept and agree that, during the term of your employment with the Company and for [1 year] after the termination thereof, regardless of the reason for the employment termination, the you shall not, directly or indirectly: (i) be engaged or employed in or provide technical, commercial or professional advice to any other business, enterprise or venture, undertaking engaged or proposed to be engaged in a business that competes with or is similar to the business of the Company in any capacity (as owner, employee, consultant, contractor, officer, director, lender, investor, agent, or otherwise); (ii) acquire shares or securities or interest of any person engaged in any business that competes with or is similar to the Business of the Company. You acknowledge that the above restrictions are considered reasonable for the legitimate protection of the Confidential Information, business and goodwill of the Company.

8. **Non-Solicitation of Customers, Customer Prospects, and Vendors**

You accept and agree that during the term of your employment with the Company and for [1 year] after the termination thereof, regardless of the reason for the employment termination, you will not, directly or indirectly solicit or attempt to solicit any customer, prospective customer, supplier, representative, agent or business contact of the Company. You acknowledge that the

above restrictions are considered reasonable for the legitimate protection of the Confidential Information, business and goodwill of the Company.

9. **Non-Solicitation of Employees**

You further agree that during the term of your employment with the Company and for [1 year] after the termination thereof, regardless of the reason for the employment termination, the you will not, directly or indirectly, recruit, solicit, or induce, or attempt to recruit, solicit, or induce, any employee of the Company, to terminate their employment relationship with the Company. You acknowledge that the above restrictions are considered reasonable for the legitimate protection of the Confidential Information, business and goodwill of the Company.

10. **Intellectual Property**

You agree and undertake that:

- a. Ownership of, and all right, title, and interest in, all work product, improvements, developments, discoveries, proprietary information, trademarks, trade names, logos, art work, slogans, know-how, processes, methods, trade secrets, source code, application development, designs, drawings, plans, business plans or models, blue prints (whether or not registrable and whether or not design rights subsist in them), utility models, works in which copyright may subsist (including computer software and preparatory and design materials thereof), inventions (whether patentable or not, and whether or not patent protection has been applied for or granted), all patents obtained in any jurisdiction and any applications therefor and all underlying patent rights, reissues, divisions, renewals, extensions, continuations and continuations-in-part thereof, and all other intellectual property throughout the world, in and for all languages, including but not limited to computer and human languages developed or created from time to time by or for the Company by you, whether before or after commencement of employment with the Company (**Intellectual Property**) shall vest absolutely in the Company.
- b. All Intellectual Property created by the you shall be regarded as having been made under a contract of service.
- c. In consideration of your employment with the Company, you hereby transfer and assign in favour of the Company, all rights, title and interest in and to all the Intellectual Property, together with the rights to sublicense or transfer any and all rights assigned hereunder to third parties, in perpetuity. In addition, you agree that such assignment shall be perpetual, worldwide and royalty free.
- d. Notwithstanding the provisions of Section 19(4) of the Copyright Act, 1957, such assignment in so far as it relates to copyrightable material shall not lapse nor the rights transferred therein revert to you, even if the Company does not exercise the rights under the assignment within a period of 1 year from the date of assignment. You further acknowledge and agree that you shall waive any right to and shall not raise any objection or claims with respect to the assignment, pursuant to Section 19A of the Copyright Act, 1957. You also agree to assist and cooperate with the Company in perfecting the Company's rights in the Intellectual Property.
- e. You shall forthwith communicate to the Company and transfer to the Company the exclusive benefit of all inventions, discoveries and improvements which he may make or discover during the continuance of his engagement relating to the Company's business

and shall give full information as to the exact mode of working and usage of the same and also all such explanation and instructions, to the officers and employees of the Company as may be necessary to enable them to work the same effectively and shall, at the expense of the Company, furnish it with all necessary plans, drawings and models.

- f. You shall, whenever requested to do so by the Company whether during or after the termination of employment hereunder, at the cost of the Company execute and sign any and all applications, assignments and other instruments which the Company may deem necessary or advisable in order to apply for and to obtain letters, patent, design, registration or other forms of protection for the aforesaid improvements, inventions and discoveries in such countries as the Company may direct and to vest in the Company the whole, right, title and interest therein.
- g. The obligations set out under this Clause 10 shall remain in effect and survive your termination of employment by the Company.

11. **Internal Policies Compliance**

You acknowledge and understand that the Company's policies form an integral part of the terms of your employment under this appointment letter. Such policies are available at our HRMS portal and may change from time to time.

You shall be entitled to earned leave, sick leave and casual leave as per the existing Policies of the Company and in accordance with applicable law.

12. **Equipment and Expenses**

The Company understands that you shall / may have to travel, incur expenses and require some assets like desktop/laptop/mobile handset/Mobile SIM etc. for and during performance of your official assignments. The Company has the requisite policies in place for the same and which shall govern all such requirements including reimbursements of any such official related expenses.

In order to support you to perform the respective official obligations the Company shall also provide you with some assets as requisite for your profile and within the applicable policies of the Company. As the same shall be entrusted upon you for performance of your respective official obligations hence you shall be liable to return the same on or before your last official working day with the Company.

13. **Data Protection**

You covenant and agree that processing of personal data in the course of your employment including personal data relating to any employee, customer, client, supplier or agent of the Company shall be undertaken in accordance with applicable law and any applicable privacy/data protection policy adopted by the Company (if any).

You consent to the Company collecting, processing and handling your data, including personal and sensitive personal data for legal, personnel, administrative and management purposes.

14. **Employee Surveillance**

You agree and understand that the Company may use various modes to ensure that the internet, email facilities and other communication systems provided by the Company are used in an appropriate manner. These may include the scanning, reading, inspection, scrutiny of emails sent and received, and web sites visited or created by you. You further acknowledge that you do not have any expectation of privacy when using the Company's resources. For the avoidance of doubt, and for the limited purpose of safeguarding the Company's confidential and proprietary information, the Company shall have the right to monitor and any personal e-mail or social media forum that may be accessible to you using company resources including but not limited to Gmail, Hotmail, Yahoo, Facebook, Twitter, etc.

The Company also reserves the right to monitor its employees using various security measures including but not limited to closed circuit television systems. These may be installed on the Company's premises overtly or covertly to ensure a safe and productive workplace.

15. **Notice Period and Termination**

If at all circumstances arise wherein you prefer to leave the employment with the Company, then you shall be under a strict obligation to submit a resignation providing a notice period of **1 (one) month** with your reporting manager and/or requisite salary in lieu thereof and follow the exit formalities as would be applicable as per the policies of the Company at that particular point of time.

The Company may terminate your employment with a prior notice of **1 (one) month** to you and/or in lieu of salary thereof.

16. Notwithstanding the above, the Company has a zero-tolerance policy towards employee misconduct and the Company can terminate your employment with immediate effect if you commit any of the following:

- a. willful misconduct or continuing failure to follow the lawful and reasonable instructions of the Company;
- b. inattention or negligence in the performance of duties and obligations under this Agreement;
- c. breach of the terms of this Agreement and breach of representations and warranties contained herein;
- d. fraud, misappropriation or dishonesty in respect of the Company's property or business; and
- e. breach of the Statement of Promise & Assurance and/or the Company's Policies by the Employee.
- f. Non- adherence to a prudent formal behavior as expected for performance of your obligations during the tenure of employment with the Company.
- g. Commission of any act defined as an offence under the applicable laws in India including but not limited to as defined in The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013.

The Company may also terminate your employment in case you are unable to perform your obligations under the employment continuously for a period of 3 (three) months on account of ill health or disability.

17. **Warranties and Representations**

The Company has offered you employment relying on the representations and warranties made by you as set out below:

- a. he/she has not been convicted for any offence and/or does not have any legal proceedings against him/her involving moral turpitude before any courts of law in the country and that he/she is not restricted by way of any order/directions from any statutory authorities to be employed with the Company;
- b. he/she has carefully read and fully understands all the provisions of this Appointment Letter;
- c. by entering into this Appointment Letter or performing any of the obligations under it, he/she will not be in breach of any court order or any express or implied terms of any contract or other obligation binding on you. Further you undertake to indemnify the Company against any such claims, costs, damages, liabilities or expenses which the Company may incur if you are in breach of any such obligations;
- d. in the performance of your obligations, he/she will not utilize or make available to the Company any confidential or proprietary information of any third party or violate any obligation with respect to such information; and
- e. he/she has never been suspended, censured or otherwise been subjected to any disciplinary action or other proceeding, litigation or investigation by any state or governmental body or agency or any regulatory authority or self-regulatory organization;
- f. he/she is fully aware of his obligations under this Agreement including, without limitation, the reasonableness of the length of time, scope and geographic coverage of these covenants; and
- g. the information/ documents submitted by him/her in relation with his employment with the Company are true, accurate and correct and not misleading in any manner.

18. **Amendment**

You may note that no amendment shall be enforceable to be acted upon by the Company to the Appointment Letter unless and until the same is/are reduced in writing and signed off by the Company with you.

You understand that integrity is a core substance of any association and accordingly the Company shall provide you a Statement of Promise & Assurance which you need to fill up and submit with the Company. You shall also be required to declare the name and details of any of your related person already working and/or associated with the Company in a Declaration which shall be provided to you by the Company. Both the Statement of Promise & Assurance along with the Declaration are attached herewith as **Annexure – B & C** respectively.

19. You acknowledge that you shall not make any representation(s), for and on behalf of the Company to anyone except wherever authorized in writing by the Company. You shall not have the right or the authority to make accept any contract or commitment for or on behalf of the Company without obtaining the prior written permission of the Company in this regard. You shall have no authority, implied or otherwise, to pledge the credit of the Company. In the event the Company is held liable for any damage, loss, claim or action arising directly or indirectly from any action of yours in violation of this clause, you shall indemnify the Company to the maximum extent permissible under the laws for the time being in force in India.

You understand that the Company may save and/or have access to the work(s) carried out by you through Company assets and for any information including any personal information shared on and/or by you through Company provided assets shall be your own responsibility and the Company shall not be liable for the same in any nature whatsoever.

20. The Company presently acknowledges a retirement age of 60 (sixty) years and whereupon the employment shall be deemed to extinguish with efflux of time.

21. **Indemnity**

You agree to indemnify and hold harmless the Company against all losses, damages, claims, interests, costs, expenses, liabilities, proceedings and demands which the Company may suffer or incur or which may be made against the Company as a result of acts or omissions by you during the course of employment including but not limited to: (i) a material breach of the Appointment Letter (ii) a material breach of any other document related to the Appointment Letter; and (iii) any act or omission by you that is injurious to the reputation of the Company including but not limited to any criminal offences or misconducts committed by you.

The Employee's indemnification obligation shall survive the termination of his employment with the Company.

22. **Arbitration**

In case of any difference and/or dispute pertaining to and arising out of the interpretation and/or concurrence and/or performance of the obligations by you of the terms of the Appointment Letter shall be amicably resolved with the Company within a period of 15 days of such dispute and/or difference from the date of reference of any such dispute and/or difference with the Company. If in any event the said dispute and/or difference and/or any part thereof is not resolved within the said period, then the same shall be referred to an Arbitration Tribunal consisting of a sole arbitrator to be appointed by the Company. The award so passed by the said Arbitration Tribunal shall be final and binding upon you and the Company. The seat shall be New Delhi and language shall be English.

23. **Waiver**

You acknowledge that if the Company does not take any action for any breach of the terms of the Appointment Letter and/or of any of your obligations to be performed by you then the same shall not be deemed to be treated as a waiver of the rights of the Company to take appropriate action and/or invoke its rights.

24. **Severability**

Any terms of this appointment letter if becomes void then the respective terms shall be severed from the appointment letter and rest of the terms shall stand valid. Notwithstanding the Arbitration clause, the courts situated at New Delhi shall possess competent and exclusive jurisdiction.

You are free to read all the contents before signing and subsequent to which you need to submit an acknowledged and accepted copy with the Company by scribing your respective signatures at the space provided below which shall be considered as your final acceptance of the same.

25. **Alternative Employment**

You are restricted from accepting any other employment or carry on any other commercial activity while employed with the Company, without our prior specific written approval.

While employed with the Company, you shall not perform such work or provide such services to any person or entity, directly or indirectly, (including as employee, independent contractor, consultant, principal, agent, director, joint venture, partner, trustee, beneficiary), where such work or services are similar to those provided by you to the Company.

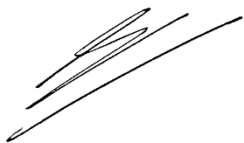
You shall not either directly or indirectly engage with any of the suppliers, service providers of the Company or earn any separate profit or interest from them. You are also prohibited to receive any kind of benefit in cash or kind directly or indirectly from any of the vendors / service providers, customers or any other person who were dealing with the Company.

In case you are found involved in dual employment, HR/DAC will take necessary action.

26. **NDC Clearance**

We will adjust your pending dues and close your F&F settlement our self, if you abscond or leave the company without completing exit formalities. you can approach us within 90 days from date of leaving but thereafter you will have no rights to ask for your F&F settlement.

ISSUED ON BEHALF OF CARS24



AUTHORIZED SIGNATORY

READ, ACKNOWLEDGED AND ACCEPTED

Mayank Chaudhary

Place: Delhi

Date: 1-Nov-2021

ANNEXURE – A

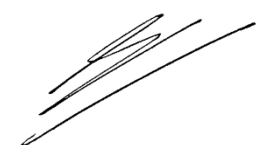
This Annexure forms part and parcel of Appointment Letter issued to Mayank Chaudhary dated 1-Nov-2021:

ANNEXURE - SALARY STRUCTURE	
Employee Name: Mayank Chaudhary	Business Unit: Direct GS
Department: Refurb	Sub – department: Quality Check
Band: B1	Grade: G3
Internal Designation: Associate III	External Designation: Quality Analyst
Fixed	450000
Annual Cost To Company (CTC)	450000
Components	Annual
	(In Rs.)
FIXED	
Basic Salary	196092
House Rent Allowance	98046
Special Allowance	129259
Statutory Bonus	14400
Total A*	437797
EMPLOYEE BENEFITS	
Medical Insurance	2771
TOTAL B	2771
RETIRAL BENEFITS	
Gratuity ***	9432
TOTAL C	9432
Total CTC	450000
Total Annual CTC	Rupees Four Lakh Fifty Thousand Only
Note: *Total A – represents Monthly Gross Salary only. And, the Monthly Net Take-Home will subject to Statutory Deductions (as applicable), professional tax (if applicable) and income tax (if applicable) as per provisions of Statutory Acts i.e. PF, State Professional Tax Guidelines & Income Tax Act. *** Gratuity is payable according to Payment of Gratuity Act, 1972, after completion of 5 years	

Additional Components:

1. The annual appraisal cycle is effective April 1 and covers all confirmed employees who have spent 6 months or more in the organization.
2. The employee will be liable to pay back any notice period buyout amount paid during the duration of the employment should either party (the employee or the company) terminate this employment contract before completion of 2 years from the date of joining.

ISSUED ON BEHALF OF CARS24



AUTHORIZED SIGNATORY

READ, ACKNOWLEDGED AND ACCEPTED

Mayank Chaudhary

Place: Delhi

Date: 1-Nov-2021

ANNEXURE – B

STATEMENT OF PROMISE & ASSURANCE OF EMPLOYEES

I, _____ son/daughter/wife of _____ resident of _____ working with / joining with Cars24 Services Private Limited, a Company incorporated under the Companies Act, 2013 having its registered office at 10th Floor, Tower B, Unitech Cyber Park, Sector 39, Gurugram, Haryana having employee ID _____ do hereby solemnly affirm and declare as follows:

1. That I have not indulge and shall not indulge in any of the following:
 - a. Sharing / Selling of any information / leads to and with any external parties.
 - b. Acting and working hand-in gloves or with/ for any Channel Partner of the Company to receive money/compensation in cash or in kind to cause financial loss to the Company.
 - c. Hereinafter accept any gifts or reward from any external party or channel partners.
 - d. Submission of false bills.
 - e. Doing any activity which may cause wrongful loss to the Company and wrongful gain to me.
2. That I understand that if I am found indulged in any of the abovementioned illegal or unlawful activities then I shall be liable to compensate the Company for the financial loss and damage caused to the Company on simple notice and without any protest or demur and simultaneously shall also be liable for punishment under the relevant offences as mentioned in the Indian Penal Code including but not limited to Sections 415/418/420 (Cheating) and Sections 405/406/409 (Criminal breach of trust).
3. That I acknowledge and understand that I am the custodian of my own professional reputation while working with the Company and which I shall uphold while working with the Company and that the Company shall possess all rights to immediately terminate my employment if any of the abovementioned statements are found false or I am identified indulged in any of the abovementioned activities.

Employee ID:

Sign:

Dated:

Signed By:

ANNEXURE – C

DISCLOSURE FOR A RELATED PERSON* WORKING WITH CARS24

I _____ son/daughter/spouse of _____ resident of _____ hereby disclose as follows:

1. That I have any Related Person(s) working or associated with Cars24 Services Private Limited.

Yes

☐

No

☐

[If marked as 'Yes' then please fill in the details mentioned at Para No. 2. If marked as 'No' then mark as Not Applicable (N/A) at Para No. 2]

OR

2. That I have the following Related Person(s) working with Cars24 Services Private Limited.

A. Name:

Designation:

Place of operation:

(If more than 2 then you may incorporate more accordingly in this Para)

B. Name:

Designation:

Place of operation:

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3. I declare that the contents mentioned above are true and correct and noting material has been concealed therefrom.

<Name & Signatures of employee>

* Related Person is defined as any person who is related as follows:

a. By way of Blood relationship

b. By way of Marriage

By way of First Level of Family Degree i.e. Uncle, Aunt, Niece, Cousin Brother or Sister.